

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Rendon	Team: Team # 1	CCRB Case #: 201013994	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/08/2010 8:05 PM	Location of Incident: Dumont Avenue between Powell Street and Mother Gaston Boulevard		18 Mo. SOL 4/8/2012		Precinct: 73
Date/Time CV Reported Wed, 10/13/2010 7:53 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 10/13/2010 10:03 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Vearmell Avenger	26705	948175	PSA 2
2. POM Joshua Bienvenue	24488	945511	BKLN CT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dion Gaspard	29802	945749	WTC CMD

Officer(s)	Allegation	Investigator Recommendation
A . POM Joshua Bienvenue	Abuse: PO Joshua Bienvenue frisked § 87(2)(b)	A . Substantiated
B . POM Joshua Bienvenue	Abuse: PO Joshua Bienvenue searched § 87(2)(b) s backpack.	B . Substantiated
C . POF Vearmell Avenger	Abuse: PO Vearmell Avenger frisked § 87(2)(b) and § 87(2)(b)	C . Substantiated
D . POF Vearmell Avenger	Abuse: PO Vearmell Avenger searched § 87(2)(b) and § 87(2)(b)	D . Alleged Victim Uncooperative
E . POM Joshua Bienvenue	Abuse: PO Joshua Bienvenue issued a summons to § 87(2)(b)	E . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 13, 2010, § 87(2)(b) filed the following complaint with the CCRB using the Call Processing System (encl. 4a-4c).

On October 8, 2010, at approximately 8:05 p.m., § 87(2)(b) and § 87(2)(b) were walking in Van Dyke Playground, located on Dumont Avenue between Powell Street and § 87(2)(b) in Brooklyn. They were stopped by PO Joshua Bienvenue and PO Vearmell Avenger of PSA 2. The following allegations resulted:

Allegation A – Abuse of Authority: PO Joshua Bienvenue frisked § 87(2)(b)

Allegation B – Abuse of Authority: PO Joshua Bienvenue searched § 87(2)(b)'s backpack.

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C – Abuse of Authority: PO Vearmell Avenger frisked § 87(2)(b)

and § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **substantiated**.

Allegation D – Abuse of Authority: PO Vearmell Avenger searched § 87(2)(b)

and § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **victim uncooperative**.

Allegation E – Abuse of Authority: PO Bienvenue issued a summons to § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

This case was forwarded to the CCRB Mediation Unit on February 25, 2011. On March 17, 2011, the case was returned to investigation because § 87(2)(b) declined to proceed with mediation (encl. 13f-13g). § 87(2)(b)

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male of slim build with short black hair.

CCRB Testimony

On January 11, 2011, § 87(2)(b) was interviewed at his grandmother's home in Brooklyn (encl. 5g-5h)

§ 87(2)(g)

On October 8, 2010, at approximately 8:05 p.m., § 87(2)(b) left his mother's apartment, located at § 87(2)(b) in Brooklyn, accompanied by three female friends, § 87(2)(b), § 87(2)(b), and § 87(2)(b), whose last name § 87(2)(b) did not know (subsequently identified by the investigation as § 87(2)(b)). They decided to walk through § 87(2)(b) Playground, located across § 87(2)(b) en route to the 3 train, which § 87(2)(b) and his companions were taking to Coney Island. § 87(2)(b) was wearing a black and blue matching sweatsuit and a North Face backpack on his back.

Upon entering the park, § 87(2)(b)'s female companions ran toward the swings and § 87(2)(b) followed behind them. After approximately one minute, an officer identified by the investigation as PO Joshua Bienvenue (described as a white male, standing 5'9", of slim build, approximately 33 years of age, and dressed in uniform) and an officer identified by the investigation as PO Vearnell Avenger (described as a black female, standing 5'7", of slim build, approximately 36 years of age, and dressed in uniform) approached § 87(2)(b) and § 87(2)(b). PO Bienvenue asked § 87(2)(b) what they were doing inside of the park. § 87(2)(b) replied that they had just entered the park, and that they were walking to the 3 train, but the girls had decided to walk over to the swings first. PO Bienvenue informed them that they were not supposed to be in the park at this time of night. PO Bienvenue then asked § 87(2)(b) where he lived and to produce his identification, which § 87(2)(b) retrieved from his front pants pocket. PO Avenger was standing approximately six feet away and speaking with § 87(2)(b) and § 87(2)(b).

At this time, § 87(2)(b) observed his friend, § 87(2)(b) (last name unknown), walking past on § 87(2)(b). § 87(2)(b) also saw his mother getting into her vehicle across § 87(2)(b). § 87(2)(b) heard § 87(2)(b) tell § 87(2)(b) that the "cops had her son." After looking at § 87(2)(b)'s identification, PO Bienvenue walked § 87(2)(b) to an adjacent fence and frisked § 87(2)(b) from "head to toe" for approximately thirty seconds. PO Bienvenue did not put his hands inside of any of § 87(2)(b)'s pockets. § 87(2)(b) had a wallet and a MetroCard inside of his pockets. Additionally, PO Bienvenue told § 87(2)(b) to take off his backpack and ordered him to unzip it. § 87(2)(b) unzipped both compartments of his backpack and PO Bienvenue shook the exterior of the bag, as § 87(2)(b) held it, in order to rearrange the interior contents as he looked inside the bag, but PO Bienvenue did not reach inside of the bag. § 87(2)(b) had clothes in his bag, and a stick of deodorant, which was located in the smaller second compartment of the backpack. PO Bienvenue did not feel the exterior of § 87(2)(b)'s bag before ordering him to take it off and unzip it.

During the time period that § 87(2)(b) was being frisked and his bag was searched, PO Avenger frisked all three of § 87(2)(b)'s female companions. § 87(2)(b) and § 87(2)(b) had bags but § 87(2)(b) did not know if PO Avenger searched the bags or their clothing.

After PO Bienvenue searched § 87(2)(b)'s bag, PO Bienvenue told him that he was free to go. § 87(2)(b) walked out of the park toward his mother's vehicle. The females were released only a few seconds after § 87(2)(b).

§ 87(2)(b) walked into the park and asked what had happened. PO Bienvenue told § 87(2)(b) to leave the park, telling her that she did not belong there. § 87(2)(b) told PO Bienvenue that § 87(2)(b).

§ 87(2)(b) was her son and asked again what had happened. § 87(2)(b) waited by § 87(2)(b)'s vehicle until she walked back out of the park and his three female friends were allowed to go. When § 87(2)(b) walked out, she noticed that she had received two summonses, but § 87(2)(b) was unclear to whom the summonses were issued.

On September 29, 2011, the undersigned called § 87(2)(b) at his direct phone line to ask follow-up questions, but it was no longer in service. On September 29, 2011 and October 3, 2011, the undersigned called § 87(2)(b) and left messages asking her to have § 87(2)(b) return the call to answer follow-up questions. As of the date of this report, neither § 87(2)(b) or § 87(2)(b) have responded to the above contact attempts.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female, who § 87(2)(b), and has black hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at her mother's home in Brooklyn on January 11, 2011 (encl. 5c-5d).

§ 87(2)(g)

On October 10, 2010, at approximately 8:05 p.m., § 87(2)(b) was exiting her apartment, located at § 87(2)(b) in Brooklyn, accompanied by her son, § 87(2)(b) and his three female friends. § 87(2)(b) was going to Coney Island to spend the weekend with his friends. § 87(2)(b) and his friends crossed § 87(2)(b) to walk through Van Dyke Playground toward the Junius Street station on the 3 subway line. After approximately two minutes, § 87(2)(b) was starting her car to drive to a location where she would go for a jog. Another friend of § 87(2)(b)s, named § 87(2)(b) (last name unknown), was walking past the park at the same time. § 87(2)(b) approached § 87(2)(b) and told her that police officers "had" her son. § 87(2)(b) turned off her car and walked into the Van Dyke Playground. The entrance to the park is not fenced off at night.

§ 87(2)(b) walked approximately thirteen feet into the park and approached an officer identified by the investigation as PO Joshua Bienvenue (described as a white male, who stood 5'8", had a stocky build, was in his early 40s, had very short hair, and was dressed in uniform). § 87(2)(b) was standing with his back towards a fence and PO Bienvenue was holding § 87(2)(b)'s black North Face backpack. The bag was unzipped and PO Bienvenue was moving the contents of the bag with his hands and looking inside of it but not removing objects. § 87(2)(b) informed PO Bienvenue that § 87(2)(b) was her son, stated that he was a minor, and asked why he was being searched. § 87(2)(b) did not know how PO Bienvenue had gained possession of the backpack. PO Bienvenue continued searching § 87(2)(b)'s backpack, which has two zipper compartments, and § 87(2)(b) again asked PO Bienvenue why he was searching § 87(2)(b)'s bag. PO Bienvenue stated, "I didn't ask you to enter the park." § 87(2)(b) reiterated that she was § 87(2)(b)'s mother. PO Bienvenue asked § 87(2)(b) if she had identification. She replied that her identification was in her vehicle and left the park to retrieve her documents. The distance between § 87(2)(b)'s car and the area inside the park where the officers were standing was approximately fifteen feet.

§ 87(2)(b) returned within a minute and provided her identification to the officer. In the interim, PO Bienvenue had returned the backpack to § 87(2)(b). § 87(2)(b) requested PO Bienvenue's name and shield number, which he provided and she transcribed. PO Bienvenue used his radio to call in a warrant check on § 87(2)(b)'s identification. During this time, § 87(2)(b)'s three female

companions were standing against another fence adjacent to § 87(2)(b) and PO Bienvenue. An officer identified by the investigation as PO Vearmell Avenger (described as a black female, who stood 5'4", had a thin build, was in her early 30s, and was dressed in uniform) was also searching a bag, which belonged to one of the females. PO Avenger was making the same motions that PO Bienvenue had made, which included holding the bag, moving objects inside of the bag, and looking inside of it. In her original complaint and her phone statement, § 87(2)(b) originally alleged that PO Avenger searched all three females, but she did not specify whether the search referred to any bags the females may have been carrying or their persons.

PO Bienvenue began writing something down while PO3 (described as a Hispanic male, who was tall, had a slim build, was in his early 30s, had short curly hair, and was dressed in uniform) and an officer identified by the investigation as PO Dion Gaspard (described as a black male, who was dressed in uniform) approached the area from deeper inside of the park, from the direction of the train station. PO3 or PO Gaspard, § 87(2)(b) did not specify, explained to § 87(2)(b) that they had approached because sometimes "parents can get crazy." About a minute after PO3 and PO Gaspard approached, PO5 (described as a black male, who stood 5'7", had a stocky build, had short hair, and was dressed in uniform) and PO6 (described as a black male, who was dressed in uniform) also approached, from the direction of the entrance to the park on § 87(2)(b). PO5 and PO6 were only at the scene momentarily before they left.

PO Bienvenue returned § 87(2)(b)'s identification to him and told him that he was free to go. After several minutes, PO Bienvenue returned § 87(2)(b)'s identification to her with two pink papers folded around it. § 87(2)(b) walked out of the park with her son and his three female companions. At her car, § 87(2)(b) unfolded the papers and discovered two summonses issued to her, one for Disorderly Conduct and another for being in the park after dark. § 87(2)(b) walked back across § 87(2)(b) and verbally attracted the attention of the officers. PO Bienvenue and PO Avenger approached the perimeter gate and spoke to § 87(2)(b) from inside the park. § 87(2)(b) asked why she had received the summonses and disputed their validity and PO Bienvenue took his hat off and stated, "Maybe my partner can explain it to you," referring to PO Avenger. PO Avenger explained to her that, "It was protocol" and that she had nothing to worry about. § 87(2)(b) unsatisfied with this response, truncated the conversation by saying, "You know what officers, both of you have a good night."

Attempts to Contact Civilians

On October 19, 2010, § 87(2)(b) provided a phone number for § 87(2)(b). Between October 20, 2010 and December 13, 2010, the undersigned investigator called § 87(2)(b) five times and left messages each time. On February 7, 2011, a handwritten Stop, Question, and Frisk report prepared by PO Bienvenue provided an address for § 87(2)(b). On February 9, 2011 and February 11, 2011, two please-call letters, which have not been returned by the USPS, were mailed to § 87(2)(b).

On January 13, 2011, § 87(2)(b) provided a phone number for § 87(2)(b). On January 18, 2011, a call was placed to the phone number, which was no longer in service. Lexis Nexis and New York State DMV queries for § 87(2)(b) on January 18, 2011 yielded negative results. On February 17, 2011, T-Mobile USA responded to a subpoena request for subscriber information linked to § 87(2)(b)'s phone number. T-Mobile USA provided an address. On February 17, 2011 and February 24, 2011, two please-call letters were mailed to § 87(2)(b) at the address provided by T-Mobile USA. On February 17, 2011, a Lexis Nexis query of the address provided by T-Mobile USA yielded two additional contact numbers, one of which was a wrong number; the other is no longer in service.

§ 87(2)(b) and § 87(2)(b) were never able to provide the correct spelling of § 87(2)(b)'s first name nor could they provide her surname. On March 30, 2011, the undersigned investigator obtained § 87(2)(b)'s surname during PO Avenger's interview at the CCRB. Additionally, PO Avenger's memo book entry provided an address for § 87(2)(b). On April 4, 2011, a please-call letter, which has not been returned by the USPS, was mailed to that address. A Lexis Nexis query provided a different address—directly across the street from the address recorded in PO Avenger's memo book—for § 87(2)(b) and two contact letters were mailed to it on April 5, 2011 and April 8, 2011. A contact number was never obtained for § 87(2)(b).

To date, none of the above females have contacted the CCRB.

NYPD Statement(s):

Subject Officer: PO JOSHUA BIENVENUE

- *PO Bienvenue is a § 87(2)(b)-old white male who § 87(2)(b), and has a bald head and brown eyes.*
- *On October 8, 2010, PO Bienvenue was assigned to PSA 2 footpost 247, which encompasses the Van Dyke Houses, and worked from 5:30 p.m. to 2:05 a.m. He was partnered with PO Vearmell Avenger, dressed in uniform, and working on foot.*

Memo Book

PO Bienvenue had detailed entries in his memo book regarding this incident (encl. 6c-6f). At 8:00 p.m., one black male and one black female were stopped at 392 Dumont Avenue for being in the park after dusk and suspicion of criminal possession of a weapon. PO Bienvenue recorded the names and dates of birth of § 87(2)(b) and § 87(2)(b). At 8:05 p.m., PO Bienvenue prepared one Stop, Question, and Frisk report and PO Avenger prepared another. At 8:06 p.m., three black females were stopped at the same location for being in the park after dusk and disorderly conduct. The names and dates of birth of § 87(2)(b) and § 87(2)(b) were recorded. At 8:20 p.m., PO Bienvenue issued two summonses and PO Avenger issued two additional summonses.

Stop, Question, and Frisk Report #§ 87(2)(b)

PO Bienvenue prepared Stop, Question, and Frisk Report § 87(2)(b) for the stop of § 87(2)(b) (encl. 6b). The crime suspected was criminal possession of a weapon. The duration of the observation that precipitated the stop was one minute. On the report, PO Bienvenue noted “furtive movements,” “wearing clothes/disguises commonly used in the commission of a crime,” and a “suspicious bulge/object” as circumstances leading to the stop. Under the basis for the frisk, PO Bienvenue noted “furtive movements” and a “suspicious bulge/object.” Under the basis for the search, PO Bienvenue recorded that he felt a hard object. No weapons or contraband were found. PO Bienvenue noted that § 87(2)(b)'s demeanor during the stop was cooperative. Under additional circumstances/factors, PO Bienvenue recorded “changing direction at sight of officer/flight” and “area has a high incidence of reported offense.”

Summons § 87(2)(b)

PO Bienvenue issued the above-referenced summons to § 87(2)(b) at 8:10 p.m. for a violation of Park Rules and Regulations 1-03 Section C (encl. 6c). PO Bienvenue wrote “park after dusk” in the field for the description of the violation.

Summons § 87(2)(b)

PO Bienvenue issued the above-referenced summons to § 87(2)(b) at 8:10 p.m. for a violation of New York State Penal Law 240.20 Subsection 2 (encl. 6c). PO Bienvenue wrote “disorderly conduct” in the field for the description of the violation.

CCRB Testimony

PO Bienvenue was interviewed at the CCRB on April 6, 2011 (encl. 6g-6h). On October 8, 2010, at approximately 8:00 p.m., PO Bienvenue and PO Avenger were patrolling the Van Dyke Playground on foot. From an unobstructed vantage point, PO Bienvenue observed § 87(2)(b) and § 87(2)(b) standing together approximately fifty yards away in an unlit area of the park. § 87(2)(b) was wearing a backpack, which raised PO Bienvenue’s suspicion given the time of night, which was hours after school had ended. § 87(2)(b) made several adjustments to the front and sides of his waistband and took his hands in and out of his pants pockets. Additionally, during this initial observation, § 87(2)(b) and § 87(2)(b) gestured near each other’s hands but PO Bienvenue could not see any objects being exchanged or if any physical contact was actually made.

PO Bienvenue and PO Avenger approached § 87(2)(b) and § 87(2)(b) who were facing west, from the south. As the officers approached, they noticed two other females, § 87(2)(b) and § 87(2)(b) sitting on a park bench approximately twenty feet away. An unknown male was also standing nearby. He explained that he was going to get § 87(2)(b)’s mother and left the park immediately. PO Bienvenue did not pursue this individual because he was not wearing a backpack and was therefore not as suspicious in PO Bienvenue’s estimation. Once PO Bienvenue was two to three feet away from § 87(2)(b)’s side, he observed an amorphous bulge near the top of the main compartment of § 87(2)(b)’s backpack. PO Avenger approached § 87(2)(b) but PO Avenger was positioned behind PO Bienvenue, so he did not observe the subsequent sequence of that encounter.

PO Bienvenue asked § 87(2)(b) for identification. § 87(2)(b) at first attempted to walk away and took two to three steps north, but then stopped. § 87(2)(b) did not have any identification on him. PO Bienvenue did not recall asking any other questions before he frisked § 87(2)(b)’s waistband and front pants pocket area. When asked if he observed any bulges in § 87(2)(b)’s waistband or front pockets, PO Bienvenue said, “I’m sure he had a bulge, but I don’t remember to be honest with you. I’m sure there was a cell phone or something in there, but I don’t remember to be honest with you.” After the frisk, PO Bienvenue asked § 87(2)(b) to remove his backpack. § 87(2)(b) complied and handed it to PO Bienvenue. Citing the surrounding high-crime area, the existence of a bulge in the backpack, the fact that § 87(2)(b) was wearing a backpack at 8:00 p.m., and his presence in the park after dusk, PO Bienvenue then squeezed the bag and frisked the bulge that he had observed. It was hard and cylindrical, but PO Bienvenue could not recall the specific dimensions. PO Bienvenue stated that individuals often carry firearms, which they use for armed robberies, in backpacks. PO Bienvenue then asked § 87(2)(b) to open the bag, to which § 87(2)(b) replied, “You can do it.” At this point, either PO Bienvenue or § 87(2)(b) —PO Bienvenue could not recall—opened the main compartment of the bag and discovered that the object was a shoe. Later in his interview, upon reviewing the Stop, Question, and Frisk report prepared for the stop, PO Bienvenue recalled that the object was actually a bottle of cologne.

During the frisk of the bulge on the backpack, § 87(2)(b) approached and proceeded to yell and curse at the officers regarding them stopping her son, § 87(2)(b). PO Bienvenue repeatedly asked her to stop yelling. § 87(2)(b)’s yelling led § 87(2)(b) and § 87(2)(b) to become “rowdy, and loud, and boisterous.” After searching the bag, PO Bienvenue asked § 87(2)(b) for identification. At this time, PO Dion Gaspard of PSA 2 approached with PO1, who PO Bienvenue could not describe, to verify that everything was under control.

PO Avenger turned her attention to § 87(2)(b) and § 87(2)(b) after her verbal interaction with § 87(2)(b). PO Bienvenue did not pay attention to these additional stops and did not see PO Avenger frisk or search any of the three females.

PO Bienvenue feared for his safety during the stop. In fearing for his safety, PO Bienvenue cited the surrounding high crime area, in which armed robberies and narcotics activity are common, § 87(2)(b)'s presence in the park after dark, § 87(2)(b)'s hand movements, and the bulge in his backpack.

PO Bienvenue provided the following justifications regarding the observations noted on the Stop, Question, and Frisk report that he prepared regarding the stop of § 87(2)(b). PO Bienvenue cited the hand gestures between § 87(2)(b) and § 87(2)(b) and § 87(2)(b)'s brief change of direction upon his approach as the justification for the furtive movements observation, the cologne bottle as the cause of the bulge in § 87(2)(b)'s backpack, and the fact that § 87(2)(b) was wearing a backpack several hours after the school day had ended as the justification behind clothes/disguises commonly used in the commission of a crime. As stated above, PO Bienvenue added that individuals often use backpacks to conceal firearms, which are subsequently used in robberies. PO Bienvenue also stated that the area is a locus of violent crimes, which was the justification for his observation that the area has a high incidence of the reported offense of criminal possession of a weapon.

Subject Officer: PO VEARMELL AVENGER

- *PO Avenger of PSA 2 is a § 87(2)(b)-old black female, who § 87(2)(b), and has black hair and brown eyes.*
- *On October 8, 2010, PO Avenger was assigned to Impact Patrol and partnered with PO Joshua Bienvenue. She worked from 5:30 p.m. to 2:05 a.m., was dressed in uniform, and worked on foot.*

Memo Book

PO Avenger had detailed memo book entries regarding this incident (encl. 7a-7d). At 8:00 p.m., one black male and one black female were stopped at 392 Dumont Avenue under suspicion of criminal possession of a weapon and violation of parks rules and regulations. § 87(2)(b) and § 87(2)(b)'s names and dates of birth were recorded underneath the entry. At 8:05 p.m., PO Bienvenue prepared one UF-250 report and she prepared one UF-250 report as well. At 8:06 p.m., three black females were stopped for violation of parks rules and regulations and disorderly conduct. Below the entry, § 87(2)(b)'s name and date of birth were recorded, as well as § 87(2)(b)'s name, date of birth, and address. Summons #§ 87(2)(b) and #§ 87(2)(b) for violations of parks rules and regulations were noted underneath the contact information for § 87(2)(b) and § 87(2)(b). At 8:20 p.m., two summonses were issued by PO Bienvenue and two were issued by herself.

Stop, Question, and Frisk Report #§ 87(2)(b)

PO Avenger prepared Stop, Question, and Frisk Report § 87(2)(b) (encl. 7f) for the stop of § 87(2)(b). The crime suspected was criminal possession of a weapon. The duration of the observation that precipitated the stop was one minute. Under circumstances leading to the stop, PO Avenger recorded “furtive movements” and a “suspicious bulge/object”—later confirmed to be a cell phone. Under the observations leading to the frisk, PO Avenger noted “furtive movements.” PO Avenger noted that § 87(2)(b) was not searched, and no weapons or contraband were discovered. Under additional circumstances, PO Avenger noted “changing direction at sight of officer/flight.”

The online Stop, Question and Frisk Report noted that other persons were stopped, and logged related Stop, Question, and Frisk Report #§ 87(2)(b) as a related stop; however, that report was for an unrelated encounter that took place several hours later and at a different location.

Summons § 87(2)(b)

PO Avenger issued the above-referenced summons to § 87(2)(b) at 8:10 p.m. for a violation of Park Rules and Regulations 1-03 Section C (encl. 7g). PO Avenger wrote “park after dusk” in the field for the description of the violation.

Summons #§ 87(2)(b)

PO Avenger issued the above-referenced summons to § 87(2)(b) at 8:10 p.m. for a violation of Park Rules and Regulations 1-03 Section C (encl. 7g). PO Avenger wrote “park after dusk” in the field for the description of the violation.

CCRB Testimony

On March 30, 2011, PO Avenger was interviewed at the CCRB (encl. 7g-7i) § 87(2)(g). On October 8, 2010, at approximately 8:00 p.m., PO Avenger and her partner, PO Bienvenue, were on patrol on Dumont Avenue between Powell Street and Mother Gaston Boulevard, in Brooklyn, on the south side of the street. The south side of the street borders Van Dyke Playground. Through the park’s gate, from approximately seven feet away, with an unobstructed view, PO Avenger observed two teenage males and three teenage females inside of the park. The two males performed a hand-to-hand transaction—PO Avenger did not know what object or objects were being exchanged—and the three females were playing on a swing set. The subject of the hand-to-hand transaction was never determined and the male who ran away was never located.

PO Avenger and PO Bienvenue walked towards the entrance to the park and one of the males ran across the street away from the park. Upon entering the park, PO Avenger and PO Bienvenue ignored the unknown male who fled, because at the time there were only two officers present and it was a more effective strategy for them to focus their attention on the remaining four individuals. PO Avenger approached the three females, and PO Bienvenue approached the remaining male, subsequently identified as § 87(2)(b). PO Bienvenue and § 87(2)(b) were positioned several feet ahead of PO Avenger and the three females. PO Avenger asked the three females why they were in the park at this time of night. She also asked the females if they knew that the park was closed, and they confirmed that they were aware of this. PO Avenger requested identification from the three females. This conversation lasted approximately five minutes.

At this time, an older woman, subsequently identified as § 87(2)(b) entered the park. She was irate, raising her voice, and yelling obscenities. § 87(2)(b) was also telling the three females that they did not have to provide identification. This led some of the females to become non-compliant, and one of them said, “I don’t have to fucking give you anything,” and “Why the fuck am I being stopped?” PO Bienvenue asked § 87(2)(b) three to four times to leave the park. Finally, when she refused to comply, he asked her for identification and wrote her summonses for disorderly conduct and for a violation of parks rules and regulations.

After repeated verbal commands, the females provided their identification. After recording the information from the females’ identification cards in her memo book, PO Avenger proceeded to frisk the exterior of all three females’ clothing. On each female, PO Avenger frisked the upper body area and the waist area. She did not encounter any hard objects aside from cellular phones. PO Avenger did not

search any of the females. PO Avenger cited the following as reasons leading to her frisk of the females. The females were wearing bulky jackets, but PO Avenger did not see any bulges. The females appeared fidgety, which indicated to PO Avenger that they “were trying to get away.” PO Avenger also cited the fact that § 87(2)(b) had briefly tried to walk away at the beginning of the stop instead of producing her identification. PO Avenger stated that it was possible that any one of the females was in possession of a weapon. Elaborating, she noted that her safety is habitually at risk, so any time she makes a stop she has to “make sure.” Additionally, PO Avenger cited the females’ non-compliance in producing identification as an indicator that one of them might be armed. PO Avenger also issued two summonses for violations of parks rules and regulations to two of the females, and exercised discretion in not issuing a third summons to the third female, citing her younger age as the motivation.

During her encounter with the three females, PO Avenger observed PO Bienvenue frisk § 87(2)(b). PO Avenger confirmed that § 87(2)(b) had a backpack with him. However, she did not see what, if anything, PO Bienvenue did with § 87(2)(b)’s backpack. PO Avenger could not describe anything else about PO Bienvenue’s conduct regarding § 87(2)(b) because she was focused on the three females.

PO Avenger prepared only one Stop, Question, and Frisk Report for the stop of § 87(2)(b) despite frisking all three females. PO Avenger was unable to provide a reason for this.

Witness Officer: PO DION GASPARD

- PO Gaspard is a § 87(2)(b)-old black male, who § 87(2)(b), and has black hair and brown eyes.
- On October 8, 2010, PO Gaspard was assigned to patrol footpost 124, which encompasses the Tilden Houses NYCHA development, worked from 12:00 p.m. to 8:35 p.m. PO Gaspard was partnered with PO James Mumper, dressed in uniform, and working on foot.

Memo Book

PO Gaspard did not have entries in his memo book regarding this incident.

CCRB Testimony

On September 14, 2011, PO Gaspard was interviewed at the CCRB. On October 8, 2010, at approximately 8:05 p.m., while walking from his foot post at the Tilden Houses back to PSA 2, PO Gaspard heard a voice shouting profanity from inside of Van Dyke Playground, located on Dumont Avenue between Powell Street and Mother Gaston Boulevard. PO Gaspard and PO Mumper were walking on the same side of Dumont Avenue as the park and PO Gaspard first heard the shouting as he walked past a library located at the corner of Dumont Avenue and Mother Gaston Boulevard. PO Gaspard could not recall specific statements, but the shouting involved the individual questioning why he or she was being stopped and the individual was also saying something about only being inside the park. As PO Gaspard looked into the park, he saw approximately five “figures” but could not make out who they were because it was dark outside.

PO Gaspard walked approximately three feet into the park and observed PO Joshua Bienvenue and PO Vearmell Avenger standing in front of an older female and a younger male. Two other civilians were standing to the side. PO Gaspard and PO Mumper were positioned behind PO Bienvenue and PO Avenger and approximately ten feet away from the older female who was still shouting and using profanity. The voice was the same voice that PO Gaspard had heard from outside of the park. On a scale of one to ten, PO Gaspard described the older female’s volume as an eight. The older female’s shouting appeared to be directed at PO Bienvenue. PO Gaspard was unable to see if the older female was making any movements with her body because PO Bienvenue and PO Avenger were standing in his line of sight.

PO Bienvenue was writing a summons, but PO Gaspard did not know what the summons was for. The younger male was also arguing with the officers but he was not shouting. PO Gaspard did not recall what the younger male was saying but stated that he and the older female appeared to be “feeding off each other.” PO Gaspard did not recall what, if anything, the other two civilians were doing or saying. PO Gaspard did not recall if there were any other individuals present aside from PO Bienvenue, PO Avenger, the older female, the younger male, and the other two civilians.

PO Gaspard remained there for approximately five minutes. During this time, his only interaction with anyone at the scene was to ask both PO Bienvenue and PO Avenger if they were alright. Both officers confirmed that they were and PO Gaspard and PO Mumper turned and left the park. As PO Gaspard left the park, the older female continued to yell. PO Gaspard was not at the location long enough to see PO Bienvenue issue the summons.

PO Gaspard consulted with PO Bienvenue when he received his notification to appear at the CCRB to confirm that he was recollecting the correct incident. PO Gaspard stated that they only conferred to determine that he had the correct incident in mind.

Officers Not Interviewed

§ 87(2)(g)

Other Documents

On October 27, 2011, § 87(2)(b) provided photographs of the signs posted outside of Van Dyke Playground (encl. 5f-5l). On the sign outlining the park hours, the closing time listed is 9:00 p.m (encl. 5i). In phone statements on October 31, 2011 and November 4, 2011, § 87(2)(b), the manager of Van Dyke Playground, stated that the current and long-standing policy at Van Dyke Playground has been that the playground areas within the park close at dusk, but the rest of the park surrounding any designated playground areas closes at 9 p.m., as noted on the signage in and around the park. The signage in and around the park always reflected these rules—both the general park closing time at 9:00 p.m. and the playground closing time at dusk—during and prior to 2010. § 87(2)(b) added that park signs are sometimes vandalized or otherwise damaged by various outdoor conditions, which necessitates their periodic replacement. Any dates on the signs describing when the text was written (encl. 5g) refer solely to the manufacturing date of a sign, not the date that a rule was established or the date when a sign was first posted.

Status of Civil Proceedings

Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of April 8, 2011 with regard to the incident (encl. 9a).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

This is the first CCRB complaint filed by § 87(2)(b) (enc. 3a).

Subject Officer(s) CCRB History

- PO Bienvenue has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Avenger has been a member of the service for one year and there are no substantiated CCRB allegations against her (encl. 2b).

Conclusion

Identification of Subject Officer(s)

PO Bienvenue and PO Avenger were identified by Stop, Question, and Frisk reports obtained by the investigation. Additionally, both officers admitted to being at the scene and interacting with the civilians during this incident.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Joshua Bienvenue frisked § 87(2)(b)

An officer is permitted to conduct a frisk of an individual when he or she “reasonably suspects that he is in danger of physical injury” and that the individual is committing, has committed, or is about to commit a crime (Criminal Procedure Law, Section 140.50) (encl. 1a).

It is undisputed that during the course of this encounter, PO Bienvenue stopped and frisked § 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) he was walking through the § 87(2)(b) Playground after dark because it provides a shortcut to the § 87(2)(b) 3 train subway stop. § 87(2)(b) was accompanied by three females, § 87(2)(b) and § 87(2)(b) who decided to stop and play on a set of swings. § 87(2)(b) was standing idly by, several feet away from his companions, when he was stopped by PO Bienvenue. PO Bienvenue asked what he was doing in the park. § 87(2)(b) provided an explanation. PO Bienvenue requested § 87(2)(b)'s identification, which § 87(2)(b) immediately provided. PO Bienvenue explained that he would have to frisk § 87(2)(b) and proceeded to do so from § 87(2)(b)'s upper body down to his feet.

According to PO Bienvenue, he first observed § 87(2)(b) and his companions standing in an unlit area of the park from a distance of approximately fifty yards. From this vantage point, and with an unobstructed line of sight, PO Bienvenue observed § 87(2)(b) adjust his waistband with one or more of his hands at the front and sides of his waist. Additionally, § 87(2)(b) and § 87(2)(b) who were standing near one another, made gestures toward one another's hands. PO Bienvenue suspected a hand-to-hand transaction, but did not see an object, or currency exchanged, and did not ever discover an object,

or currency that had been exchanged. Furthermore, PO Bienvenue did not see § 87(2)(b) and § 87(2)(b) actually make physical contact. Upon PO Bienvenue's approach from the south, § 87(2)(b) who had been facing west, took a couple of steps north, but did not move any farther and did not attempt to flee or walk away. After asking § 87(2)(b) for identification, which § 87(2)(b) did not have, and without making any further inquiry, PO Bienvenue proceeded to frisk § 87(2)(b)'s waist area and front pants pockets. Moreover, PO Bienvenue did not recall observing any bulges in § 87(2)(b)'s waistband or front pockets. § 87(2)(g)

§ 87(2)(b) PO Avenger testified that she observed § 87(2)(b) perform a hand-to-hand transaction with an unknown male who left the park upon the officers' approach. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) "that [the area] may have been a high-crime area" is insufficient with "no other indicia of criminality... to supply the requisite reasonable suspicion to forcibly stop and frisk." People v. Powell, 246 A.D.2d 366, 369-370 (1998) (encl. 1b-1e). § 87(2)(g)

§ 87(2)(b) the act of reaching towards a waistband absent additional indications of a crime is insufficient to justify a frisk because it could just as easily be explained as an innocuous gesture, such as tucking in a shirt. People v. Miller, 121 A.D.2d 335, 338 (1986) (encl. 1f-1k). § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: PO Joshua Bienvenue frisked and searched § 87(2)(b)'s backpack.

It is undisputed that PO Bienvenue frisked and searched § 87(2)(b)'s backpack. According to § 87(2)(b) PO Bienvenue told § 87(2)(b) to remove his backpack and unzip the main compartment, without conducting a preliminary frisk of the exterior of the backpack. § 87(2)(b) complied, and as § 87(2)(b) held the open backpack, PO Bienvenue shook the backpack while grasping its exterior in order to rearrange its contents, and looked inside of the bag as he did so.

According to PO Bienvenue, once he was within two to three paces of § 87(2)(b) who had his side positioned toward PO Bienvenue, he observed a bulge located near the top of the main compartment of § 87(2)(b)'s backpack, which he was wearing on his back. § 87(2)(g) PO Bienvenue frisked § 87(2)(b)'s waistband and front pants pockets. § 87(2)(g) PO Bienvenue asked § 87(2)(b) to remove his backpack. § 87(2)(b) complied and handed it to PO Bienvenue. With the backpack in his possession, PO Bienvenue squeezed the bag and felt the bulge. The bulge was cylindrical and hard, but PO Bienvenue did not recall the dimensions. PO Bienvenue misremembered that he eventually discovered that it was a shoe, and the Stop, Question, and Frisk Report noted that it was a bottle of cologne. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

PO Bienvenue then ordered § 87(2)(b) to unzip the main compartment, to which § 87(2)(b) replied, "You can do it." PO Bienvenue did not recall who eventually unzipped the main compartment, but once it was open, he determined that the cause of the bulge was not a weapon.

If "the exigent circumstance of a weapon [is] involved," an officer may frisk a bag. People v. Moore, 32 N.Y.2d 67, 71 (1973) (encl. 1l-1q). If that requirement is met, an officer may frisk a suspect's bag if the bag and its contents are "immediately accessible to the defendant and 'could be reached by the suspect during the brief face-to-face encounter' putting at immediate risk both the officers and innocent bystanders." People v. Cartagena, 189 A.D.2d 67, 72 (1st Dept. 1993) (encl. 1r-1u). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

While an officer must first pat the exterior of a bag and the region of the bulge, subsequent to that, if the officer is able to "ascertain that it contain[s] a gun... the information available to the officer constitute[s] probable cause." Cartagena, 189 A.D.2d at 72-73 (encl. 1r-1u). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C – Abuse of Authority: PO Vearmell Avenger frisked § 87(2)(b)

and § 87(2)(b)

It is undisputed that PO Avenger frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g)

The females were initially non-compliant with requests to produce their identification, which also heightened PO Avenger's suspicion that they may be armed. When asked if she suspected the females of being armed, PO Avenger stated that it was "possible" but that because her safety is always at risk she has to "make sure" during every stop she conducts.

An officer must have reasonable suspicion that an individual is armed or otherwise poses a threat to an officer's safety before conducting a frisk. People v. Batista, 88 N.Y.2d 650, 655 (1996) (encl. 1v-1bb).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation D – Abuse of Authority: PO Vearmell Avenger searched § 87(2)(b)

and § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **victim uncooperative**.

Allegation E – Abuse of Authority: PO Joshua Bienvenue issued a summons to § 87(2)(b)

It is undisputed that § 87(2)(b) entered Van Dyke Playground after dark and that subsequent to her interaction with PO Bienvenue, he issued her one summons for a violation of New York State Penal Law 240.20 subsection 2 (disorderly conduct) and another summons for a violation of Park Rules and Regulations 1-03 Section C, Subsection 2. PO Bienvenue wrote "park after dark" in the description section of the park rules and regulations summons. It is also undisputed that § 87(2)(b)'s actions inside of Van Dyke Playground were limited to a verbal confrontation with the officers regarding the stop of her son, § 87(2)(b) who was § 87(2)(b) at the time of this incident. § 87(2)(g)

According to § 87(2)(b) she entered Van Dyke Playground after being informed that the police "had" her son. When she confronted PO Bienvenue, he said, "I didn't ask you to enter the park," and requested her identification. § 87(2)(b) had to leave the park, walk to her parked vehicle, and re-enter the park in order to furnish her identification at PO Bienvenue's request, which he then used to conduct a warrant check and issue her the summonses. According to PO Bienvenue and PO Avenger, § 87(2)(b) was highly irate, raising her voice, and using profanity. § 87(2)(b)'s behavior even began to incite the females present to become "rowdy, loud, and boisterous"—in PO Bienvenue's words—and to refuse requests to provide identification—according to PO Avenger. According to PO Bienvenue, he made several requests to § 87(2)(b) that she stop shouting, but he made no mention of

asking her to leave the park. According to PO Gaspard, he could hear § 87(2)(b) s shouting from outside of the park, and it led him to become concerned enough to enter the park to verify that everything was alright, despite the fact that his tour was over and he was en route back to his command.

Park Rules and Regulations 1-03 Section C (encl. 1cc-1dd) addresses failure to comply with directions of police officers, urban park rangers, parks enforcement patrol officers, or other department employees, or park signs. Subsection 2 reads, “No person shall fail to comply with or obey any instruction, direction, regulation, warning, or prohibition, written or printed, displayed or appearing on any park sign, except such sign may be disregarded upon order by a Police Officer or designated Department Employee.”

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Team: _____

:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date